



Dancing for Democracy: Understanding Malawi's First Female President

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Abstract: *There are 54 countries on the African continent, but only one has managed to elect a woman, Ellen Johnson Sirleaf in Liberia, as chief executive. While African countries face unique issues, there is a common thread in the struggles of female politicians in male-dominated, traditional societies. The case of Joyce Banda, the President of Malawi, is illustrative.*



In April 2012 Joyce Banda was sworn in as President of Malawi, becoming the first female head of state in southern Africa. The ascendancy of the former Vice President came not through popular election, but by constitutional provision after the death of President Bingu wa Mutharika. International response to her new

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administration has been favorable. Britain, Malawi's primary aid donor, welcomed Banda's decision to get rid of the presidential jet and fleet of luxury cars purchased by her predecessor. Banda devalued the *kwacha* currency against the U.S. dollar in May as a step toward restoring donor country and International Monetary Fund confidence in Malawi. She also has focused on government austerity and the provision of basic services to Malawi's poorest. Germany, which had reduced aid to Malawi in early 2011, announced shortly after the devaluation that, based on the country's new economic course, it would increase aid to Malawi to about \$66 million.¹

Banda has barely slowed down since April 2012 in her drive to reform the politics and economics of the impoverished country. But in 2014 she will face the electorate; her electoral opponent is likely to be Peter wa Mutharika, the well-spoken, Yale-educated brother of the late President. That election will be the true test of whether reform can triumph over the cronyism and corruption typical in Africa.

According to Transparency International's 2011 Corruption Index,² on a scale of 1-10, Botswana is the least corrupt Sub-Saharan country with a score of 6.1, with Somalia at 1 as the most corrupt. The land-locked, aid-dependent, slightly-smaller-than-Pennsylvania, former British colony of Malawi does quite well at 3, tying with more economically developed countries such as Argentina and faring better than Russia.³ Nevertheless, corruption remains a fundamental part of politics throughout Africa, and a minefield for all those who enter the political arena, as Joyce Banda discovered.

Banda, a large woman, who carries herself regally in traditional African dress, emanates both intelligence and warmth. Elected Vice President in 2009, she went from being perhaps the most active politician in Malawi to near isolation (at one time it was unclear whether the first female elected to an executive position in Malawi would even be allowed to complete her term) to the Presidency. The downward turn in her fortune stemmed from her popularity in a country where reform and development take a back seat to the toxic African stew of politics, poverty, money and tradition.

¹ "Germany beefs up aid to Malawi after country changes course under new president," Associated Press, Aug. 22, 2012.

² The index attempts to measure perceived public sector corruption.

³ <http://cpi.transparency.org/cpi2011/results/>



Malawi's President Joyce Banda (l) pictured with co-author Marilyn Moss Rockefeller (r) in 2009

Although officially granted the right to vote in the 1960s, women have only recently achieved an active political voice in Malawian politics. Before that, their role was confined to supporting men running for office—often exhibited through dance. At a 2009 political rally in Malawi, then-Vice President Banda explained why women in Malawi dance and ululate at political rallies. “Because I am African, we dance as part of our culture and identity. We dance during birth, we dance when we brew beer, we dance when we praise God, we dance when there is death, we dance when we install chiefs. We dance as a form of appreciation and expression of our feelings. [...] Dancing is part of who we are.”⁴

For many years, Banda danced for other politicians. Then Banda and her supporters danced to promote her Vice-Presidential candidacy, to celebrate her election, and before being rebuked and isolated by the Mutharika administration, in tacit anticipation of a potential run for the Presidency. Dancing is clearly a tradition in this small African country nestled between Zambia and Tanzania. But other African traditions, including corruption and the nearly complete domination of African society by its men, overshadowed the chance of a future Banda Presidency. Yet Banda refused to dance to the traditional tune expected of women: simply supporting male candidates and doing what one was told. Consequently, opposition to Banda escalated as the 2014 election approached—not least from former President Mutharika himself. Even with the death of President Mutharika, that opposition remains.

Joyce Banda was born in 1950 in the rural Zomba area of Malawi. Beyond the primary and secondary education usually reserved for boys, Joyce attended the

⁴ “Women and Gender; Women Challenge for Top Posts,” *Africa News*, March 5, 2009.

University of Malawi, where women were allowed to take secretarial courses, and later married. A life of typing and dictation was the expected path for women with higher education, but not for Joyce. “I wanted to do more,” she says. “I wanted to make a difference.”⁵

At the age of 31, she took her three children and divorced her abusive husband. Banda struggled to support her family on her secretarial salary, but she was committed to furthering her education, pursuing college degrees in both Non-Government Organization Management and Early Childhood Development. She then founded businesses in garment manufacturing, construction and agriculture. Her clothing enterprise was especially successful, one of the largest companies ever created by a Malawian woman. She became an activist, hosting meetings for women around Malawi, lecturing them on entrepreneurship, marketing, and finance. One early success was a group of women who grew tomatoes, sold them along the highways or at markets, and then used the profits to open their own produce shops.

Banda then founded the National Association of Business Women (NABW), providing women access to training, information, credit markets and basic tools like calculators. NABW has since disbursed \$2 million in loans and trained 12,000 women to run their own businesses. Most of the women are in rural areas and many are the main breadwinners for the family, widowed by HIV/AIDS and other maladies that translate to a life expectancy in the low 50s for most Malawians.

Worse, AIDS and other maladies do not observe the courtesy of leaving at least one parent alive, and over the years Banda has encountered thousands of orphans. One in particular haunts her. Walking into an abandoned hut, Banda found a small child huddled in a dark corner, left alone to die of hunger. “That child, there that day, changed my life forever,” she recalls. Subsequently, Banda pressed for more orphanages, first to save the lives of the children, and then to educate them. “There are 1.2 million orphans,” according to Banda, “who, even if they live, can’t get educated,” and will likely fall prey to the same dangers that killed their parents.⁶

In 1997 Banda shared the Hunger Project Africa Prize for Leadership with the former President of Mozambique, Joaquim Chissano. She used her prize money to establish the Joyce Banda Foundation, whose mission is to provide African women and children with education, economic training, and leadership skills. She was twice voted Woman of the Year in Malawi, and has received numerous international awards in recognition of her humanitarian work. As of 2010, her foundation had more than 16,500 beneficiaries, which could seem a tiny effort in a country where over half the children are malnourished.

All this might have been just the story of a self-made African woman had Banda contented herself with tending to widows and orphans. But in 2004 she ran for office, and was elected to parliament. In short order, she was appointed to

⁵ Personal statement to the author, Sept. 22, 2012.

⁶ Ibid.

Mutharika's cabinet as Minister of Gender, Child Welfare and Community Development, where she pushed for an anti-domestic violence bill, launched a zero tolerance campaign against child abuse, introduced safe transit homes for abused women and children, and other measures. She later served as Malawi's Minister of Foreign Affairs and International Cooperation. Soon, Joyce Banda, the humanitarian activist, found herself thrust into the world of corrupt African politics.

Malawi's History

Scottish explorer David Livingston reached Lake Nyasa, in what is now Malawi, in 1859. By 1891 Malawi was part of the British Central African Protectorate, with British plantations quickly dotting the map. Later, the territory of Malawi became part of the Federation of Rhodesia and Nyasaland, but until 1964 it was still under British rule. Two years later Malawi adopted its first constitution.

Malawi's political history since its independence has been evolutionary not revolutionary. That's the good news. The bad news is Malawi has not escaped the political corruption that has generally plagued Africa's developmental potential. While each of Africa's 54 countries faces unique domestic issues, all suffer to some degree from the plague of corruption.

Malawi is perhaps best known in the United States as the country where the singer Madonna adopted two children. For most Malawians, life is primitive. The UN 2009 Human Development Index ranked Malawi 171st out of 187 countries.⁷ According to UNICEF statistics, over 20 percent of Malawi's per capita gross national income comes from overseas aid, and 74 percent of the population remains below the international poverty line, living on less than \$1.25 per day.⁸ Villages consist of mud huts with thatched roofs and dirt floors. There are no lights and no running water. HIV and AIDS are rampant. Malawi has a mineral mining industry with potential for growth, although that potential remains largely unrealized. For now, most of the population ekes out a subsistence living on family farms, surviving mainly on corn.

The government is reliant on international aid and assistance for development—primarily from the European Union and the United States—with predictable consequences: When large amounts of aid money flow into a country, spending becomes difficult to monitor. In fact, the potential for sleight-of-hand profit has proved too great a temptation for many Malawian politicians.

⁷ <http://hdr.undp.org/en/statistics/>

⁸ http://www.unicef.org/infobycountry/malawi_statistics.html#69

A Legacy of Corruption and Cronyism

Dr. Hastings Kamuzu-Banda (no relation to Joyce), an American-trained medical doctor who had spent 20 years practicing in Britain and known for his simple, almost puritanical, lifestyle, was instrumental in Malawian independence. His supporters called him “the black messiah.” When he returned to Africa in 1958, he was initially considered a moderate who primarily organized protests against British rule. But as Great Britain tried to create a union of the two Rhodesias—now Zambia and Zimbabwe—and Nyasaland, Banda became a political radical.

After Malawi gained its independence in 1964, Banda quickly moved from being a champion of the people to declaring himself President for Life in 1971, heading a repressive, often violent regime. A paramilitary wing of his Malawi Congress Party (MCP), called the Young Pioneers, used strong-arm tactics to keep him in power until the 1990s. Human Rights Watch and Amnesty International regularly criticized Banda and his government.

Personally, Banda had become more complicated as well. On the one hand, he remained socially conservative, enforcing a dress code that banned mini-skirts, long hair and other manifestations of western sexual liberalism. He also required that a contingent of women dance for him at all government events, often dressed in clothes bearing his images.⁹ On the other hand, he funded Chitukuko Cha Amai m’Malawi (CCAM) to address women’s issues in Malawi, encouraging education for women and prodding them to play more active roles in their communities.

In 1983, Banda called for an “internal debate” on potential multi-party elections, which would have challenged his title of “President for Life.” Three cabinet ministers, apparently unaware of the expected status-quo outcome of the debate, voiced support for multi-party elections at a Cabinet meeting. Banda was furious, and immediately dissolved the Cabinet. These three Cabinet ministers mysteriously died in a traffic accident soon thereafter.

Deposed in 1993, Banda had accumulated personal wealth estimated at over \$300 million through corrupt practices during his tenure in office, most of which was invested in South African businesses. That was not surprising as he supported South Africa’s white rulers; his own attitude toward Malawians was somewhat colonial. He died in 1997 in a South African hospital at the age of 101.

Elson Bakili Muluzi served two five-year terms as President after winning the Presidency from Banda, running for office as an advocate of democracy in the first multi-party elections in Malawi. In the first election, Muluzi broke from Banda’s MCP and formed the United Democratic Front (UDF). Muluzi relentlessly dogged Banda through the courts on charges of corruption and even for the murder of the three cabinet ministers killed in the “traffic accident.” Yet, Banda managed to evade conviction.

⁹ “Hastings Banda,” *The Economist*, Nov. 27, 1997.

Muluzi fared well during his two terms in office, so well, in fact, that in 2002 he proposed a Constitutional amendment that would have allowed him to run for a third term, a gambit that failed. Muluzi's tenure, however, was not without scandal. The most prominent of these scandals was the sale of Malawi's corn reserves abroad shortly before the onset of a drought. Not only was the result a widespread famine in Malawi, but also millions of dollars from these sales went missing; Muluzi and his supporters were widely suspected of diverting the cash into foreign accounts.

Nevertheless, Muluzi remained a popular leader, particularly in the rural southern part of the country. In what had become standard operating procedure for politicians on the "outs" with the leadership, he left the UDF and formed his own party, the Democratic Progressive Party (DPP) in February 2005. Demonstrations eventually forced him to step down in favor of UDF candidate and former World Bank official Bingu wa Mutharika.

Just as Muluzi had pursued the ousted Banda through the judicial system, Mutharika went after Muluzi, leading to the latter's arrest in 2007. However, the charges were dropped for lack of evidence, leading a very displeased President Mutharika to suspend the chief investigator on the case. Muluzi was arrested again in 2008 in connection with a plot to overthrow Mutharika, though again the charges were dropped. But Mutharika remained Ahab-like in his vendetta against Muluzi, detaining him again in 2011 for corruption. While still awaiting trial after Mutharika's, Muluzi spoke publicly in favor of Joyce Banda's Presidency. Perhaps foreshadowing a changed attitude toward Muluzi, on the part of the new government, he was selected to lead the Commonwealth group observing parliamentary elections in Lesotho in May 2012.¹⁰

During his first term, President Bingu wa Mutharika received praise for his efforts to move Malawi's development forward. For example, early in his administration he announced that his government would provide subsidies to farmers for seed and fertilizer,¹¹ in an effort to wean Malawians off of food aid. He also managed to alleviate at least some of the petty corruption so pervasive in Malawians's daily lives, leading his supporters to call him "Moses wa Lero"—a modern day Moses.

In 2009, Mutharika sensed a serious re-election challenge, in part from a growing political awareness among Malawi's women. Political activists Loveness Gondwe and Beatrice Mwale capitalized on Malawi's 50:50 Campaign, developed the year before in response to the Southern African Development Community and Gender Protocol. This protocol committed countries to work toward having 50

¹⁰ "Commonwealth to observe parliamentary elections in Lesotho," *The Commonwealth*, May 12, 2012, <http://www.thecommonwealth.org/news/246995/140512lesotho.htm>

¹¹ Roger Thurow, "The Fertile Continent," *Foreign Affairs*, Nov./Dec. 2012, pp. 107-108.

percent women in political decision-making positions by 2015.¹² The campaign is coordinated through the Ministry of Women and Children Development, with support from international donors including the United Nations. Gondwe and Mwale formed the Rainbow Coalition Party and became the first Malawian women to aspire to the Presidency and Vice Presidency. While perhaps not serious contenders for election, they could well have split the expected votes of the dominant parties, and demonstrated the need to court women's votes.

In response to their candidacy, politically savvy Mutharika selected Banda, then his foreign minister, as his running mate. Banda's popularity with the people through her lifelong, grassroots activism, particularly on women and children's issues, was a key to Mutharika's election. The number of women elected to parliament increased in 2009 from 14 percent to 22 percent, and Malawi had its first woman Vice President. Mutharika's plan worked, but it also alerted the President to the breadth of Banda's appeal. It wasn't long after the election that he began to view Banda's large and growing popularity as a threat to his own position.

Mutharika's election challenge was also fueled by his increasingly lavish lifestyle. In his personal life, Mutharika lived more like Pharaoh than Moses. He had become one of the richest men in Africa and lived like it—in obscene opulence in the midst of poverty. Both domestic and international critics skewered Mutharika for spending \$13 million on a jet, which he used during the considerable time he spent outside Malawi with his entourage. While in Malawi, he often resided in a 58-room mansion in his home district. Curiously, Mutharika sought to rehabilitate the memory of Hastings Banda, restoring his name to the national stadium, central hospital and international airport, after Muluzi had stripped it from all.

In some ways, Mutharika's second term can be described as a toned-down version of the Presidency of Hastings Banda, both in his arrogant and dismissive approach to external criticism and his repressive approach to internal challenge. Balking at any bad publicity, in 2010 Mutharika threatened to close Malawi's doors to donors after an unfavorable report sponsored by Britain reported severe food shortages.¹³ Meanwhile, as Joyce Banda's popularity was becoming more apparent, Mutharika first discounted her and tried to isolate her—Banda supporters could face party expulsion for even having dinner with her—and then to fire her.

"Many had hoped Banda would become the country's first female President in 2014," South African journalist Claire Ngozo wrote in late 2010.¹⁴ Mutharika and his ruling Democratic Progressive Party (DPP), however, had other ideas: the DPP launched a smear campaign against Banda, including statements in the official press challenging the Vice President's competence. Noel Masangwi, a top DPP official and the party's Regional Governor for the South, told local media in 2010 that

¹² Janet Z. Karim, Statement delivered to the 3rd Committee on Agenda Item 27: Advancement of Women, United Nations, New York, Oct. 11, 2010, <http://www.un.org/womenwatch/daw/documents/ga66/Malawi.pdf>

¹³ "Malawi president threatens aid donors, newspapers," *Reuters*, Aug. 26, 2010.

¹⁴ "Malawi vice-president 'blasts' national media," *BBC Monitoring World Media*, Jan. 8, 2010.

“Malawi is not ready for a Woman President. The Vice President may have such ambitions, but I am sorry to say this.”¹⁵ Emma Kaliya, chairperson of the NGO Gender Coordinating Network, and also a member of President Mutharika’s advisory council for strategic planning, countered that Malawian women were being treated like second-class citizens. “The recent political happenings have raised eyebrows...we fear it is accruing to the suppression of women’s rights. This undermines the voting power of women who form the majority of the total population.”¹⁶

While women’s rights in Malawi—rights won slowly and still largely viewed by many men as a threat to traditional male domination—were clearly being challenged, something far more personal was also at stake. Many in Malawi saw the castigation and isolation of the unexpectedly popular Joyce Banda as merely an attempt to displace her in time for Mutharika to install his brother—“by hook or crook,” according to the Malawi National Women’s Lobby¹⁷—as his successor.

The problem facing Mutharika was the same one that Muluzi faced earlier: he was constitutionally barred from serving a third term. Seeing what had happened to past Presidents after they had left office, Mutharika wanted to make sure that if he could not stay in office himself, the Presidency would pass to someone friendly to him—preferably a family member. Banda, for her part, conveyed that she had no interest in pursuing the course followed by her predecessors. Such prosecutions—leading to a distortion of democracy—are “the curse of Africa,” according to Banda.¹⁸ Further, she refrained from any public criticism of Mutharika.

Mutharika, of course, did not trust Banda’s good intentions. He wanted to make sure the office stayed in reliable hands. The President’s brother, Peter, appeared ready to assume the Presidency, and if this plan didn’t work out, there was a fallback. The President’s wife, Callista wa Mutharika, was installed in late 2010 as a Cabinet Minister without portfolio (and given a generous salary), ranking her third in the government after Banda. This marked the first time in Malawi’s history that a First Lady was made part of the Cabinet, and the transparent nepotism involved sparked protests, especially when Mrs. Mutharika made it clear that she did not believe Vice President Banda was capable of succeeding her husband.¹⁹ Peter wa Mutharika became the clear frontrunner for 2014, and Banda was pressured to endorse him. She declined. Joyce Banda retreated to her home, but refused to concede her position as Vice President, or to support Peter wa Mutharika’s candidacy.

¹⁵ Clair Ngozo, “Malawi: Ruling Party Smears Woman Vice-President,” *Africa News*, Aug. 25, 2010.

¹⁶ Ngozo, Aug. 25, 2010.

¹⁷ Group Statement, Dec. 9, 2010.

¹⁸ Personal statement to the author, Sept. 22, 2012.

¹⁹ “Tanzania; First Ladies on the Spotlight as Some Flex Their Muscles All Over,” *The Citizen* (Dar es Salaam), *Africa News*, Sept. 11, 2010.

Joyce Banda is not a political novice. She is a seasoned politician who has observed Malawian politics up close since independence. As noted earlier, Presidents in the past have had a history of arresting their predecessors for corruption. Unsurprisingly, they are therefore reluctant to leave office. Political leaders shunned by their own party tend to break off and form their own party. When Banda agreed to become Vice President, she was aware of this history and she knew Mutharika as well as anyone. When Mutharika turned against her, she knew she would face intimidation, and possibly worse. But she also realized, as Mutharika undoubtedly did, the wrath that would follow from the donor community if harm befell her. She also enjoyed widespread respect within Malawi. During her virtual house arrest in 2010, one newspaper observed that “Vice President Joyce Banda is a very likable politician. She is not one of those ‘in-your-face’ kind of ubiquitous and self-seeking politicians who are always looking for an opportunity to be in the limelight. She is gracious ... [and] effortlessly commands respect.”²⁰

Unfortunately for Mutharika, it was not just women who supported Joyce Banda. Many individuals and groups saw the credibility of the entire democratic process as being put at risk by the smear campaign against Joyce Banda and the clear nepotism in evidence. Malawi’s Public Affairs Committee (PAC), an influential group of religious bodies established in 1992 during the transition from one party dictatorship to democracy, spoke out against the treatment of the vice president. The Reverend MacDonald Kadawati, acting PAC Chair, issued a statement in August 2010 voicing concern about the “deliberate omission” of Banda’s voice on state media. The group has also spoken on the same kind of gender issues Banda supports. Not surprisingly, PAC clergy were subsequently victimized by selective arrests.²¹ The Human Rights Consultative Committee, an umbrella organization of 91 civil society groups in Malawi, wrote an open letter to President Mutharika asking him to restore “dignity and respect” to the office of the Vice President.²²

Beyond the smear campaign, other tactics to push Joyce Banda aside have failed as well. After she did not attend an August 2010 DPP National Governing Council meeting, a proposal was floated to have her legislatively removed from office for missing that meeting. The proposal apparently was thwarted by DPP director of legal affairs Henry Phoya when he pointed out that provisions cannot work retrospectively. When contacted for comment later, however, Phoya declined to do so.²³ In August 2010, Mutharika stripped Banda of her position as the African Union (AU) Safe Motherhood Goodwill Ambassador, a position for which, given

²⁰ Levi Kabwato, “Veep black out: Not so bright idea,” *The Sunday Times*, Jan. 24, 2010.

²¹ “Malawi: Rights group hails vice-president, censures cleric’s arrest,” *BBC Monitoring Africa*, Aug. 27, 2010.

²² Ambuje Che T. N. Likambale, Jan. 11, 2011.

http://www.africaglobalvillage.com/africanews/southern-africa/malawi/552-first-open-letter-to-peter-mutharika.html?device=xhtml#.UFdZ_0L3DC8

²³ “Malawi succession row deepens after vice-president skips ruling party talks,” Aug. 14, 2010.

her background, she was particularly well suited, because it gave her too much international, or at least African, exposure.

Finally, Mutharika expelled her from the DPP for “championing programs that are contrary to the party’s agenda.” According to a DPP spokesman, Banda was encouraging members to join other parties. According to Banda, however, the spokesman left out the part where she remarked that she had been told that if she attempted to form a new party—as other Malawian politicians on the outs with their party have commonly done in the past—she would be “crushed.”²⁴ Nonetheless, Banda did form her own People’s Party shortly thereafter.

Under Mutharika, the state media was wielded against Banda so clumsily that it would have been comical were the stakes not so high. While Television Malawi (TVM) feigned a risible innocence in the whole matter, Banda claimed that TVM went so far as to pretend to shoot coverage of her and then not use the material.²⁵ TVM, with a complete lack of irony, countered that Banda simply wandered the country doing nothing of importance, so they chose not to air what was not newsworthy,²⁶ and that Banda mistreated reporters.²⁷ The press blackout on Banda was not the first time President Mutharika has been accused of using the “free press” for his own gain. International poll monitors in the 2009 election repeatedly expressed concern about the heavily one-sided coverage of the incumbent. Mutharika and the ruling DPP were determined to keep women in their place—and the Mutharika family in power. That meant defending the dominant political power of men generally and the President’s family specifically.

The campaign against Banda created a culture of fear among female politicians in Malawi. Many became afraid to speak publicly, and for good reason. Anita Kalindam, a member of Parliament and herself a DPP member, was assaulted by a group of angry men at an August 2010 function where Mutharika was present.²⁸ No arrests were made, and as the 2014 election grows closer, an increasingly hostile atmosphere has led to more attacks on women and reformers.

An ominous event in late 2010 raised the possibility that Banda herself is being targeted. A truck ran into her guarded convoy, slamming the Vice President’s car. By a stroke of luck, Banda was not hurt; she had changed cars at the last minute. Car accidents are a menace in Africa, but they are also suspicious when they involve politicians—witness the “tragic accident” of Hastings Banda’s three ministers. Banda’s supporters feared the accident was an attempt on Banda’s life, or at least a warning to step aside and back Peter wa Mutharika. Banda’s critics claimed the

²⁴ Personal statement to the author, Sept. 22, 2012.

²⁵ “Malawi vice-president ‘blasts’ national media,” *BBC Monitoring World Media*, Jan. 8, 2010.

²⁶ “Malawi: Vice-president queries state broadcaster over lack of coverage,” *BBC Monitoring Africa*, Sept. 14, 2010.

²⁷ “Malawi vice-president ‘mistreated’ reporters from state radio – ruling party,” *BBC Monitoring Africa*, Sept. 15, 2010.

²⁸ Claire Ngozo, “Malawi: Ruling Party Smears Woman Vice-President,” *Africa News*, Aug. 25, 2010.

whole thing was a staged event to generate sympathy and attention. Whatever the truth, views of the accident on both sides reflect the deep tensions that are already building over the 2014 election.²⁹

Mutharika isolated Banda by eliminating her staff, confiscating her cars, and even seizing her cell phones. She stayed at her compound on Lake Nyasa, quietly continuing her work through her foundation. Even if her physical life was not on the line—and that was far from uncertain at times—her political life surely was.

The reaction to Banda's isolation has reflected the usual divisions within African countries. On the one hand, some democratic principles have taken root in Malawi, leading many to reject the open patronage of handing the highest office in the country to Mutharika's brother or wife. On the other, many are satisfied with—or benefitting from—Mutharika's regime, and happy to see his line continue.

In April 2012, Bingu wa Mutharika died of cardiac arrest. After two days of political suspense and intrigue centering on whether the Mutharika clan would successfully circumvent the Malawi constitutional provisions for succession, Joyce Banda succeeded Mutharika as President.³⁰ Mutharika supporters went so far as to withhold a death announcement and move his body to Pretoria to buy time for a potential family succession bid, and it was only from sources in Pretoria that Joyce Banda heard he was actually dead. Civil society, and perhaps most important, the army supported her, and stepped in to guard her when she assumed the Presidency.³¹ But she will be tested again in 2014. Peter Mutharika has already declared himself a presidential candidate in that race³² and draws big crowds of supporters at rallies.³³ Other challengers will likely emerge as well.

To no one's surprise, President Banda fired Peter wa Mutharika from his position as Foreign Minister, as well as other Mutharika loyalists. But she also

²⁹ "DPP regime planned to kill Joyce Banda," *Malawi Today*, Aug 27, 2012. President Joyce Banda later told the South African press she had proof that the accident was a deliberate attempt on her life, <http://www.malawitoday.news/126380-dpp-regime-planned-kill-joyce-banda>

³⁰ "Malawi President Mutharika Dies Suddenly; Succession Questions Remain," *International Business Times*, Apr. 6, 2012, <http://www.ibtimes.com/articles/324912/20120406/bingu-wa-mutharika-dead-malawi-president.htm>; Lydia Polegreen, "Malawi's Leader's Death is Reported Unofficially, and U.S. Worries about Succession," *New York Times*, Apr. 6, 2012, <http://www.nytimes.com/2012/04/07/world/africa/questions-swirl-around-malawis-president-after-heart-attack.html>

³¹ "How democracy came through Malawi's succession," *The Guardian*, Apr. 11, 2012, <http://www.guardian.co.uk/global-development/poverty-matters/2012/apr/11/malawi-constitutional-succession-president-banda>

³² "Peter Mutharika takes Thyolo by storm, declared 2014 ambition," *Nyasa Times*, July 16 2012, <http://www.nyasatimes.com/malawi/2012/07/16/peter-mutharika-takes-tholo-by-storm-declares-2014-ambition>

³³ Norman Lincoln, "Should MBS Cover Peter Mutharika's Rallies?" *Nyasa Times*, July 24, 2012, <http://www.nyasatimes.com/malawi/2012/07/24/should-mbc-cover-peter-mutharikas-dpp-rallies/>

named Austin Atupele Muluzi, the son of former President Bakili Muluzi, to her cabinet as the Minister for Economic Planning and Development. Reminiscent of Muluzi's rehabilitation of Hastings Banda, Joyce Banda seems to be mending fences with Muluzi and his supporters. Given that Muluzi was also a presidential hopeful from his father's former ruling United Democratic Front party and was drawing big crowds at opposition rallies earlier in 2012, it may also be largely a smart political move on Banda's part. Lawyer and activist Ralph Kasambara, a loud and frequent commentator on Bingu wa Mutharika's dictatorial tendencies, was also named as Justice Minister and Attorney General—a post he held when Mutharika first came to power in 2004.

Meanwhile, in politics as in physics, for every positive action there seems to be a potentially negative one. Whereas Germany increased its aid commitment to Malawi, the German government has made it clear the money would come only slowly “until such issues are addressed to ensure that the money is used for the intended purposes.”³⁴ Further, the devaluation of the *kwacha* led to panic-buying in some towns, as consumers feared price increases.³⁵

President Joyce Banda traveled to New York in September 2012 for what the international community considered a highly successful visit. President Banda met with United Nations Secretary Ban Ki-Moon, U.S. Secretary of State Hillary Clinton, spoke to the General Assembly,³⁶ and signed a Memorandum of Understanding with former U.S. President Bill Clinton's Global Initiative organization, toward eradicating poverty.³⁷ Critics in Malawi decried expenditures for the trip as extravagant, evidencing that she will not—and should not—escape scrutiny.³⁸ Her supporters, however, insisted that she maintain the trappings culturally expected of an African leader working with international peers, and complained when she cut the size of her entourage. Joyce Banda is clearly navigating a minefield of obstacles, and likely inevitable temptations. Malawi has a window of

³⁴ Stephen Dakalira, “German aid freeze to Malawi setback to quick economic recovery,” capital radio malawi, Aug. 24, 2012, <http://www.capitalradiomalawi.com/index.php/news-flash/84-german-aid-freeze-to-malawi-setback-to-quick-economy-recovery-economists>

³⁵ “Malawi devalues kwacha by 33%, leading to panic-buying.” *BBC News Africa*, May 7, 2012.

³⁶ Thom Chlumia, “Malawi Leader JB, UN Chief Hold Talks in New York,” *Nyasa Times*, Sept. 24, 2012, <http://www.nyasatimes.com/malawi/2012/09/24/malawi-leader-jb-un-chief-hold-talks-in-new-york/>

³⁷ Amanda Chilliro, “Malawi's JB, Clinton sign pact: poverty eradication initiative,” *Nyasa Times*, Sept. 24, 2012. <http://www.nyasatimes.com/malawi/2012/09/24/malawis-jb-clinton-sign-pact-poverty-eradication-initiative/>

³⁸ Kondwani Chitsulo, “Malawians Cough K186M for Joyce Banda's UN Trip,” *Malawi Voice*, Sept. 15, 2012, <http://www.malawivoice.com/2012/09/15/malawians-cough-k186-million-for-joyce-bandas-un-trip-as-chiefs-pp-morale-boys-relatives-ministers-form-entourage-33955/>

opportunity to make progress, however, and for now, optimism remains high that she will take advantage of that window.

The peaceful transfer of power from one group to another is the acid test of any democracy. Though the ham-fisted government tactics of the late Hastings Banda and even Elson Muluzi are over, democracy in Malawi still has a hard road ahead. Grace Kamanga, a woman who regularly dances at DPP political rallies, summarized the situation as it stood while Bingu wa Mutharika lived. “We were getting geared up to dance for a female President in 2014 for a change but now it looks like we are not going to be allowed that pleasure.”³⁹ Now Joyce Banda is President, and she is ready to dance in 2014.



³⁹ Claire Ngozo, “Campaign Against Female Vice President a Campaign Against Equality, *Inter Press Service*, Aug. 25, 2010, Johannesburg,